

Form No:HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Crl. Misc. No.34610/B/2019

Shahzad alias Sajjad Vs. The State etc.		
S.No.of order/ Proceeding	Date of order/ Proceeding	Order with signature of judge, and that of parties or counsel, where necessary.

27.06.2019	Mr. Yousaf Rehmat Ali, Advocate for petitioner. Ms. Tahira Parveen, DPP. Muhammad Yasir SI with record.
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Through this petition, the petitioner seeks post-arrest bail in case FIR No.381/19 dated 11.03.2019 registered u/s 9(c) of the Control of Narcotic Substances Act, 1997 at P.S. Sanda, Lahore.

2. The brief allegation against the petitioner as per contents of FIR is that on 11.03.2019 at 09:00 a.m., he was apprehended by the local police on spy information and Chars weighing 1510-gms, wrapped in a shopper bag was recovered from his possession.

3. Heard. Record perused.

4. After hearing the learned counsel for the parties and going through the record, it transpired that as per prosecution story, the petitioner on seeing the raiding party tried to run away, but after encircling him, the raiding party managed to arrest him and thereby got recovered the quantity of chars as mentioned above. The learned counsel for the petitioner vigorously contended that the story narrated by the prosecution did not ring true, as the petitioner is suffering from blindness from his both eyes since last one year. In order to substantiate his version, he drew the attention of this Court to an

application submitted by the petitioner before the learned Sessions Judge, Lahore regarding his medical check-up. The learned Addl. Sessions Judge, Lahore while accepting the application submitted by the petitioner, ordered the Superintendent, District Jail, Lahore to get the petitioner medically examined. In pursuance of order passed by the learned Addl. Sessions Judge, Lahore, the Superintendent, District Jail, Lahore submitted a report, which is also annexed herewith this petition and the same reads as under:-

*“In compliance with the orders of the learned Court of Syed Faiz-ul-Hassan, Additional District & Sessions Judge, Lahore regarding the medical report of the under-trial prisoner **Shahzad s/o Muhammad Arif**, involved in case FIR No.381/19, U/S 9-C, P.S. Sanda, Lahore.*

It is submitted that I have carefully examined the above said under-trial prisoner. He is vitally stable and afebrile with B.P. 120/80 mmHg, Pulse 78/min & Temp. 98.6 F. He gives history of blindness but no medical record of his condition is produced. He was complaining of bilateral blindness. He was referred to Services Hospital, Lahore dated 24.05.2019 in OPD where his detailed oral examination was done by consultants. According to their report, he is diagnosed as case of Bilateral blindness / non-viable eyes due to bilateral macular dystrophy and chorioretinal abiotrophy. Necessary symptomatic treatment is being provided to him from the jail hospital.

Report is submitted for kind perusal.

*Sd/
MEDICAL OFFICER
DISTRICT JAIL, LAHORE”.*

On perusal of report, it transpired that the petitioner was diagnosed as a case of bilateral blindness / non-viable eyes. So, the prosecution case to the

effect that the petitioner was carrying narcotic substance and on seeing the police party, tried to run-away and the raiding party apprehended him while encircling him, had become a matter of further inquiry. In this regard guidance is respectfully sought from dictum laid down in case of Aslam vs. The State (2006 YLR 2972). As far as the contention of the learned Law Officer that the petitioner is previously involved in six cases of narcotics is concerned, admittedly, he has not been convicted so far in any case.

5. In a sequel to above discussion, there are sufficient reasons to believe that the case of the petitioner, calls further probe into his guilt within the scope of section 497(2) Cr.P.C.

6. Under the circumstances, this petition is allowed and the petitioner is admitted to post-arrest bail, subject to his furnishing bail bond in the sum of Rs.2,00,000/- (Rupees two lacs) with one surety in the like amount to the satisfaction of the learned Trial Court.

(Muhammad Waheed Khan)
Judge

Approved for reporting

Judge

Mumtaz